

****February 22, 2022****

****Fine for Violation of GDPR****

The National Supervisory Authority has completed an investigation in February into the operator the Professional Civil Society of Lawyers "Sabou, Burz & Cuc" and found that it violated the provisions of Article 5 paragraph (1) letters a), b), c), f) and paragraph (2) and Article 6 of the General Data Protection Regulation.

The operator Professional Civil Society of Lawyers "Sabou, Burz & Cuc" was sanctioned administratively with a fine of 4946 lei, equivalent to 1,000 EURO.

The investigation was initiated following a complaint regarding the disclosure by the operator of the personal data of a petitioner (client of the operator) without their prior consent and information, by posting an address received by them from a public institution on a WhatsApp group used by the lawyers of a bar association. During the investigation, it was found that the Professional Civil Society of Lawyers "Sabou, Burz & Cuc" disclosed the personal data of the data subject (name, surname, home address, information related to a case pending before a court) in a WhatsApp group consisting of 247 members, without legal basis, excessively and incompatibly with the initial purpose of their collection, as well as without adopting

technical and organizational measures to maintain the confidentiality of this data, thus violating the provisions of Article 5 paragraph (1) letters a), b), c), f) and paragraph (2), as well as Article 6 of the General Data Protection Regulation.

Additionally, the operator was also subject to the following corrective measures:

- the corrective measure to ensure compliance with the General Data Protection Regulation of the operations of collecting and further processing of the personal data of the petitioner to ensure notification of all members of the WhatsApp group used by the lawyers of a bar association for the deletion of the address posted on this group;
- the corrective measure to ensure compliance with the General Data Protection Regulation of the operations of collecting and further processing of personal data within the legal relationships of assisting and representing the operator's clients, so as to avoid the disclosure of personal data obtained from them, outside the situations permitted by law, including through regular training of the persons processing data under the authority of the operator.

A.N.S.P.D.C.P.